

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202202986	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/10/2022 5:40 PM	Location of Incident: Hart Street and Stuyvesant Avenue	18 Mo. SOL 11/10/2023	Precinct: 81		
Date/Time CV Reported Tue, 05/10/2022 6:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 05/10/2022 6:03 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Mohammad Abdelfattah	00603	965915	PSA 3
2. PO Krishawni Denton	11162	967479	PSA 3
3. PO Steven Guerrero	12693	966089	PSA 3
4. PO Alex Ayala	13253	955733	PSA 3
5. PO Anthony Tolba	17642	966885	081 PCT
6. PO David Kapelanski	09992	944690	PSA 3
7. PO Thermond Brunson	02982	973061	PSA 3
8. PO Kristin Coscia	29268	950236	081 PCT
9. PO Edber Vazquez	07154	966901	081 PCT
10. PO Olivia Kania	18131	960744	PSA 3
11. PO Jeffrey Stpierre	18671	966867	PSA 3
12. PO Nelson Hernandez	02220	954934	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Dillon Nasroodin	09730	964676	081 PCT
2. PO Steven Kamalic	12057	960740	081 PCT
3. PO Manuel Mancheno	26266	954091	081 PCT
4. PO Sylvia Golaszewski	27407	953913	PSA 3
5. SGT Karen Nelson	02562	937203	PSA 3
6. PO Pascual Melo	06249	966218	PSA 3
7. PO Andre Gaddy	01415	966581	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Mohammad Abdelfattah	Force: Police Officer Mohammad Abdelfattah used physical force against § 87(2)(b)	
B. PO Krishawni Denton	Force: Police Officer Krishawni Denton used physical force against § 87(2)(b)	
C. PO Steven Guerrero	Force: Police Officer Steven Guerrero used physical force against § 87(2)(b)	
D. PO Steven Guerrero	Force: Police Officer Steven Guerrero used a chokehold against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
E.PO Steven Guerrero	Force: Police Officer Steven Guerrero restricted § 87(2)(b)'s breathing.	
F.PO Steven Guerrero	Force: Police Officer Steven Guerrero restricted § 87(2)(b)'s breathing.	
G.PO Mohammad Abdelfattah	Force: Police Officer Mohammad Abdelfattah used a non-lethal restraining device on § 87(2)(b).	
H.PO Krishawni Denton	Force: Police Officer Krishawni Denton used physical force against § 87(2)(b).	
I.PO Mohammad Abdelfattah	Discourtesy: Police Officer Mohammad Abdelfattah spoke discourteously to § 87(2)(b).	
J.PO Mohammad Abdelfattah	Force: Police Officer Mohammad Abdelfattah restricted § 87(2)(b)'s breathing.	
K.PO Alex Ayala	Force: Police Officer Alex Ayala used physical force against § 87(2)(b).	
L.PO Thermond Brunson	Force: Police Officer Thermond Brunson used physical force against § 87(2)(b).	
M.PO Anthony Tolba	Force: Police Officer Anthony Tolba used physical force against § 87(2)(b).	
N.PO Jeffrey Stpierre	Force: Police Officer Jeffrey Stpierre used physical force against § 87(2)(b).	
O.PO Olivia Kania	Force: Police Officer Olivia Kania used physical force against § 87(2)(b).	
P.PO Jeffrey Stpierre	Discourtesy: Police Officer Jeffrey Stpierre spoke discourteously to An Individual.	
Q.PO Edber Vazquez	Force: Police Officer Edber Vazquez used physical force against An Individual.	
R.PO Kristin Coscia	Force: Police Officer Kristin Coscia used physical force against § 87(2)(b).	
S.PO Nelson Hernandez	Force: Police Officer Nelson Hernandez used physical force against § 87(2)(b).	
T.PO David Kapelanski	Force: Police Officer David Kapelanski used physical force against § 87(2)(b).	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	

Case Summary

On May 10, 2022, § 87(2)(b) filed the following complaint on behalf of § 87(2)(b) with the CCRB online.

On May 10, 2022, at approximately 5:40 p.m., near the corner of Hart Street and Stuyvesant Avenue in Brooklyn, PO Mohammad Abdelfattah, PO Krishawni Denton, and PO Steven Guerrero, all of PSA-3, attempted to stop § 87(2)(b) due to a suspicion that he was carrying a firearm. § 87(2)(b) attempted to flee from officers. PO Abdelfattah, PO Denton, and PO Guerrero forcibly took § 87(2)(b) to the ground (**Allegations A, B, C: Force – Physical force, § 87(2)(g)**). During the struggle, PO Guerrero placed his arm around § 87(2)(b)'s neck and restricted § 87(2)(b)'s breathing (**Allegation D: Force – Chokehold, § 87(2)(g)**) (**Allegation E: Force – Restricted breathing, § 87(2)(g)**). PO Guerrero then placed his knee on § 87(2)(b)'s upper back (**Allegation F: Force – Restricted breathing, § 87(2)(g)**). PO Abdelfattah deployed his Taser in prong and then stun mode on § 87(2)(b) (**Allegation G: Force – Taser, § 87(2)(g)**). PO Denton struck § 87(2)(b) in the head with a closed fist three times (**Allegation H: Force – Physical force, § 87(2)(g)**).

After being placed in handcuffs, § 87(2)(b) continued to physically struggle with officers. At one point, PO Abdelfattah said, “Oh my god, put him down. Put him down. I’m fucking sick of this shit.” (**Allegation I: Discourtesy – Word, § 87(2)(g)**). PO Abdelfattah placed his knee on § 87(2)(b)'s lower back (**Allegation J: Force – Restricted breathing, § 87(2)(g)**).

Additional officers arrived on scene, including PO Alex Ayala, PO Thermond Brunson, PO Anthony Tolba, PO Dillon Nasroodin, PO Jeffrey Stpierre, PO Olivia Kania, PO Edber Vazquez, PO Kristin Coscia, PO Steven Kamalic, PO Manuel Mancheno, PO Karen Nelson, PO Sylvia Glaszewski, PO Nelson Hernandez, PO Pascual Melo, and PO David Kapelanski, all from the 81st Precinct or PSA-3. PO Ayala, PO Brunson, PO Tolbe, PO Stpierre, and PO Kania used force to restrain § 87(2)(b) on the ground until he was placed on a stretcher (**Allegations K, L, M, N, O: Force – Physical force, § 87(2)(g)**).

An unknown individual walked up to § 87(2)(b) while officers were restraining him. PO Stpierre said to the unknown individual, “Get the fuck out of here” (**Allegation P: Discourtesy – Word, § 87(2)(g)**).

PO Vazquez, PO Coscia, PO Hernandez, and PO Kapelanski placed § 87(2)(b) onto a stretcher and restrained him (**Allegations Q, R, S, T: Force – Physical force, § 87(2)(g)**). § 87(2)(b) was then removed to the hospital.

§ 87(4-b), § 87(2)(g)

There were two arrest reports prepared for this incident. The top charge for § 87(2)(b) was § 87(2)(a) 160.50. For § 87(2)(b), § 87(2)(a) 160.50. No summons was issued.

There is BWC footage from PO Abdelfattah, PO Denton, PO Guerrero, PO Ayala, PO Brunson, PO Tolba, PO Nasroodin, PO Stpierre, PO Kania, PO Nelson, PO Vazquez, PO Kamalic, PO Glaszewski, PO Mancheno, PO Coscia, PO Hernandez, PO Melo, PO Gaddy, and PO Kapelanski (**BRs 09-13**). There are also cellphone photos from § 87(2)(b) (**BR 14**). Relevant portions will be discussed below.

Findings and Recommendations

Allegation (A) Force: Police Officer Mohammad Abdelfattah used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Krishawni Denton used physical force against § 87(2)(b)

§ 87(2)(b)

Allegation (C) Force: Police Officer Steven Guerrero used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Steven Guerrero used a chokehold against § 87(2)(b)

Allegation (E) Force: Police Officer Steven Guerrero restricted § 87(2)(b)'s breathing.

Allegation (F) Force: Police Officer Steven Guerrero restricted § 87(2)(b)'s breathing.

Allegation (G) Force: Police Officer Mohammad Abdelfattah used a non-lethal restraining device on § 87(2)(b)

Allegation (H) Force: Police Officer Krishawni Denton used physical force against § 87(2)(b)

It was undisputed that § 87(2)(b) attempted to run from officers, physically resisted officers' efforts to place him in handcuffs, and was in possession of a loaded firearm.

§ 87(2)(b) provided an intake (**BR 01**) and verified (**BR 02**) statement to the CCRB. § 87(2)(b), § 87(2)(g)

She provided more details in her verified statement. She was walking southbound on Stuyvesant Avenue, approaching Hart Street, behind two male civilians, one of whom was identified by the investigation as § 87(2)(b) when she saw an officer, identified by the investigation as PO Denton, exit an unmarked RMP. PO Denton walked behind § 87(2)(b). The RMP pulled up to the corner of Hart and Stuyvesant and two additional officers, identified by the investigation as PO Abdelfattah and PO Guerrero, exited the RMP and approached § 87(2)(b) and the other unidentified individual.

§ 87(2)(b) tried to run from officers, but the three officers pinned him to the ground. § 87(2)(b) did not see what happened to the other civilian. § 87(2)(b) resisted arrest by fidgeting and moving around. PO Abdelfattah punched § 87(2)(b) with a closed fist in the head, neck, and chest seven times. PO Denton and PO Guerrero also punched § 87(2)(b) in the same manner three times before § 87(2)(b) yelled, "No knuckles." PO Abdelfattah told § 87(2)(b) to step back because § 87(2)(b) had a gun.

§ 87(2)(b) continued to resist arrest and all three officers resumed punching § 87(2)(b) in the same area. § 87(2)(b) estimated that they hit him another seven times before she yelled, "Knuckles are not part of the job." § 87(2)(b) continued to resist and PO Abdelfattah warned him that he was going to tase him. § 87(2)(b) did not stop resisting, so PO Abdelfattah tased him once. § 87(2)(b) stopped resisting and the officer placed him in handcuffs. § 87(2)(b) took photos of the officers and then walked away. She did not mention any officer placing § 87(2)(b) in a chokehold.

§ 87(2)(b) provided photos to the investigation (**BR 14**) that show PO Abdelfattah, PO Denton, and PO Guerrero holding § 87(2)(b) on the ground. The photos do not capture any of the additional allegations.

§ 87(2)(b) could not be reached to provide a statement for this investigation.

The investigation was unable to identify the individual with § 87(2)(b).

PO Abdelfattah (**BR 03**) stated that he, PO Guerrero, and PO Denton were working a Neighborhood Safety Team assignment when they observed two individuals, one of whom was § 87(2)(b) walking towards the officers on the corner of Broadway and Stuyvesant. § 87(2)(b) was wearing a black mask, grey hoodie and a small black crossbody fanny pack that was weighted down on one side more than the other. There was an "L" shaped item in the fanny pack that resembled a firearm, and it took up the majority of the bag. The other individual wore a hoodie, but PO Abdelfattah did not notice if he had a bag because he was focused on § 87(2)(b). The officers made a U-turn on Broadway and continued to observe § 87(2)(b) from approximately one car-length away. PO Abdelfattah discussed with his partners in the vehicle and confirmed that they also saw what appeared to be a gun in the fanny pack prior to exiting.

Due to flight concerns, officers tactically approached § 87(2)(b) and the second individual § 87(2)(b), § 87(2)(g)

PO Denton exited the vehicle from behind the two individuals while PO Abdelfattah and PO Guerrero drove up to the corner of Hart and Stuyvesant.

PO Abdelfattah exited the RMP and asked § 87(2)(b) if he could come over and speak to him for a second. § 87(2)(b) attempted to run away eastbound on Hart Street and PO Abdelfattah grabbed him by the arm and said he just wanted to talk to § 87(2)(b). The other individual with § 87(2)(b) ran away and PO Abdelfattah did not observe what he had on him because he was focused on § 87(2)(b)'s fanny pack.

§ 87(2)(b) resisted and grappled with PO Abdelfattah by tensing his arms and grabbing his fanny pack. § 87(2)(b) then tripped and slipped down. § 87(2)(b) was sitting on the ground on his side. His chest was not obstructed. § 87(2)(b) tried to crawl away and PO Abdelfattah caught him on the ground and held his arms by the shoulder area.

PO Guerrero exited the vehicle fifteen to twenty seconds into the altercation. PO Guerrero grabbed the fanny pack off of § 87(2)(b) because § 87(2)(b) tried to pull it towards him. PO Guerrero felt the firearm from the outside of the pack and said, "He has it, he has it," referring to the firearm. PO Guerrero did not open the bag. He took it off of § 87(2)(b) to prevent him from accessing it and stepped away from the scene to call for back up and to handle communications. PO Abdelfattah did not observe PO Guerrero placing § 87(2)(b) in a chokehold. He did not hear § 87(2)(b) state that he could not breathe.

PO Denton tried to put cuffs on § 87(2)(b) but he resisted by tensing his arms. § 87(2)(b) said, "I'm gonna stop, I'm gonna stop," but he did not. PO Abdelfattah initially told PO Denton he was going to use his Taser, but PO Denton said no. § 87(2)(b) then bit PO Denton's leg, so the two officers agreed to use the Taser. PO Abdelfattah told § 87(2)(b) he would use a Taser. § 87(2)(b) responded, "no, no, chill, chill," but § 87(2)(b) did not physically comply.

PO Abdelfattah deployed his Taser in prong mode on § 87(2)(b) for one cycle. He attempted to make contact with § 87(2)(b)'s back but only two prongs made contact so PO Abdelfattah could not close the circuit. PO Abdelfattah heard the sound of the Taser but it was not connected to § 87(2)(b) during the first deployment. PO Abdelfattah then used the Taser in drive-stun mode with the cartridge in the middle of § 87(2)(b)'s back, where it was effective. He activated the Taser in drive-stun mode for three cycles on § 87(2)(b)'s back. § 87(2)(b) stopped for a brief second and then continued to resist once the officers eased up on him. PO Abdelfattah believed that PO Denton then placed § 87(2)(b) in handcuffs. PO Abdelfattah holstered his Taser once § 87(2)(b) was handcuffed and did not deploy it again.

§ 87(2)(b), § 87(2)(g)

At some point while the officers were still trying to get the bag away from § 87(2)(b) PO Denton was standing up and § 87(2)(b) bit PO Denton's right shin. The bite broke skin and later caused swelling and pain for several weeks. PO Denton told § 87(2)(b) to stop biting him. § 87(2)(b) continued to bite PO Denton until PO Denton used three to five hand strikes. The hand strikes were with closed fists somewhere on § 87(2)(b)'s head and were done for compliance. After the hand strikes, § 87(2)(b) stopped biting and did not bite PO Denton again. No additional hand strikes were used after.

§ 87(2)(b), § 87(2)(g)

PO Guerrero took the fanny pack off of § 87(2)(b) when he saw that the fanny pack had been unzipped about halfway and the gun was visible inside the bag. PO Guerrero tried to get the bag off § 87(2)(b)'s body while § 87(2)(b) fought with them. PO Guerrero squeezed the top of the bag to push down the gun in case § 87(2)(b) opened the bag completely. PO Guerrero put his arm around § 87(2)(b)'s rib to get the bag off of him. PO Guerrero pulled the bag away from § 87(2)(b)'s body to try to get it off of him and keep it away from him. PO Guerrero took the strap off from § 87(2)(b)'s head and was able to remove the bag from § 87(2)(b).

§ 87(2)(b)'s person. PO Guerrero held onto the bag for the rest of the altercation from what he remembered until they were back in the stationhouse.

PO Guerrero did not initially recall making any contact with § 87(2)(b)'s neck or throat area. PO Denton's BWC from 1:05 to 1:25 was presented in his interview. He amended his statement in that he acknowledged he made contact with § 87(2)(b)'s neck area but reiterated that the purpose of this was to remove the fanny pack from § 87(2)(b)'s body. He did not recall § 87(2)(b) making any statements that he could not breathe. PO Denton's BWC was presented from 1:38 to 1:40 showing PO Guerrero's knee pressed into § 87(2)(b)'s upper back. PO Guerrero did not recall why he did this, stating that he might have tripped or lost his balance, but reiterated that § 87(2)(b) was still resisting arrest and was grabbing for the bag, so he was focused on placing § 87(2)(b) in handcuffs and getting the bag away from him.

PO Denton's BWC (**BR 09**) most comprehensively captures Allegations A through H, though there is no audio until 1:00. At 00:26, PO Denton steps out of his RMP and walks behind § 87(2)(b). § 87(2)(b) and the second individual are walking about thirty feet ahead of him. § 87(2)(b) is wearing a grey jacket, blue jeans, and a black crossbody bag. At 00:38, PO Abdelfattah exits the RMP closer to the intersection of Hart Street and Stuyvesant Avenue. He approaches § 87(2)(b) and grabs his arm. § 87(2)(b) pulls away from him and runs around the corner on Hart Street. PO Denton runs over to them, where § 87(2)(b) falls onto the ground into a sitting position. At 00:52, PO Guerrero holds onto the bag by the straps with his right hand.

At 1:00, the audio begins. § 87(2)(b) appears to be resisting by pulling away from the officers. He keeps his hands in front of him. At times, such as briefly at 00:56, PO Guerrero and § 87(2)(b) are both holding the bag. An officer says, "Stop resisting." At 1:03, PO Guerrero wraps his right arm around § 87(2)(b)'s neck from behind and over § 87(2)(b)'s right shoulder. § 87(2)(b) says, "Why y'all hitting me?" An officer tells § 87(2)(b) to stop resisting twice more. At 1:08, PO Guerrero removes his arm from § 87(2)(b) and holds onto the bag while § 87(2)(b) holds onto the bag by the straps. They continue grappling with § 87(2)(b) for ten seconds.

At 1:17, PO Abdelfattah says, "Tase him." § 87(2)(b) says, "Don't tase me, bro." PO Abdelfattah says, "So, stop resisting, bro! Put your hands behind your back!" PO Denton places a handcuff on § 87(2)(b) right wrist. § 87(2)(b) does not place his arms behind his back and instead still holds onto the bag.

At 1:35, the officers are still struggling to detain § 87(2)(b). PO Guerrero pushes § 87(2)(b) head down toward the ground and places his knee on § 87(2)(b) back, pushing him to the ground. The action takes about two seconds. At 1:40, an officer says, "I'll tase him." § 87(2)(b) shouts, "No!" but does not let go of the bag or place his hands behind his back. § 87(2)(b) says, "Yo, what the fuck?" PO Abdelfattah replies, "He got a gun, move back."

At 1:55, the officers are still struggling to detain § 87(2)(b). He gets up off the ground and falls back over onto his back. PO Guerrero attempts to hold him down onto the ground, but § 87(2)(b) pushes him off and stands up again. PO Abdelfattah and PO Denton are both holding Tasers, but PO Denton's prongs are not deployed. The prongs of PO Abdelfattah's Taser are connected to § 87(2)(b)'s lower back.

At 2:00, PO Denton drops his Taser and grabs § 87(2)(b) by his jacket on the upper back. A Taser is heard being deployed but is not seen on video. At 2:05, § 87(2)(b) bites PO Denton near his right knee. PO Denton says, "Keep biting me." He strikes § 87(2)(b) in the head with a closed fist three times. The Taser is still heard being deployed. At 2:25, § 87(2)(b) places his hands behind his back, and PO Abdelfattah moves his Taser away from § 87(2)(b) lower back.

Screenshots from the 1:05 mark (**BR 27**) and 1:06 mark (**BR 26**) of PO Denton's BWC capture PO Guerrero's arm around § 87(2)(b)'s neck.

PO Guerrero's BWC (**BR 12**) is knocked off his uniform during this portion of the incident and thus is not comprehensive. PO Abdelfattah did not activate his BWC at the beginning of this incident and similarly is not comprehensive (**BR 12**). There were no additional officers present for this portion of the incident on their BWC.

Threat Resistance and Injury reports were prepared regarding this incident (**BR 08**). The overview states that officers observed a fanny pack with a bulge that resembled a firearm and that when an officer felt the bag and felt a firearm, § 87(2)(b) started wrestling/grappling with officers to avoid the bag being removed and to avoid being placed in handcuffs. § 87(2)(b) bit PO Denton in the leg, causing bruising and swelling, and PO Denton utilized hand strikes to stop § 87(2)(b) from biting him. After multiple verbal warnings, PO Abdelfattah discharged his CEW in both probe and then stun mode due to the probes not making contact with § 87(2)(b). PO Guerrero used a forcible takedown on § 87(2)(b) who was then subdued and placed in handcuffs. PO Denton submitted a supporting attachment to the report showing the injuries he incurred on his leg from § 87(2)(b)'s bite. A supporting attachment notes that § 87(2)(b) was sedated by EMS on scene and placed in restraints due to his resistance.

§ 87(2)(a) 160.50

Patrol Guide procedure 221-01 (**BR 15**) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” The procedure defines a chokehold as “any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow” and states that officers “shall not use a chokehold.”

Patrol Guide procedure 221-02 (**BR 16**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. This procedure also instructs officers to apply no more than the reasonable amount of force necessary to gain control. Officers are to avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject’s chest or back, thereby reducing the subject’s ability to breathe. Officers should position rear-handcuffed persons to promote free breathing, as soon as safety permits, by sitting the person up or turning the person onto his or her side.

Patrol Guide procedure 221-08 (**BR 17**) states that when a member of service is considering the use of a conducted electrical weapon (CEW), they must consider the totality of the circumstances and decide if such a use of force is reasonable and necessary to overcome resistance when effecting an arrest or taking an emotionally disturbed person into custody. Specifically, they should consider the factors noted in PG 221-01—including, but not limited to, the nature and severity of the circumstances, as well as the actions taken by the subject. If possible, officers should issue a verbal warning to the intended subject and other members of service present prior to discharging the CEW.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

When PO Guerrero placed his knee on § 87(2)(b)'s upper back, as seen in BWC, § 87(2)(b), § 87(2)(g) s chest is not on the ground, and they make contact for less than two seconds. § 87(2)(b), § 87(2)(g)

As noted above, § 87(2)(b) physically resisted PO Abdelfattah's, PO Denton's, and PO Guerrero's attempts to take him into custody by stiffening his body, repeatedly standing up and attempting to run away, holding his arms in front of him, and biting PO Denton. Officers also gave § 87(2)(b) multiple verbal commands to put his hands behind his back, which he ignored and instead reached for his firearm. BWC confirms that § 87(2)(b) continued resisting as described while PO Abdelfattah deployed his Taser in probe and stun mode and, when § 87(2)(b) finally stopped resisting and complied with officer's orders to put his hands behind his back, PO Abdelfattah put his Taser away. § 87(2)(b), § 87(2)(g)

It was undisputed that § 87(2)(b) was ignoring verbal commands and was still attempting to take his bag from officers, which contained a loaded firearm, and flee the scene when he bit PO Denton in the leg. § 87(2)(b), § 87(2)(g)

Allegation (I) Discourtesy: Police Officer Mohammad Abdelfattah spoke discourteously to

§ 87(2)(b)

Allegation (J) Force: Police Officer Mohammad Abdelfattah restricted § 87(2)(b) s breathing.

These allegations derive from BWC footage.

§ 87(2)(b) stated that she left after § 87(2)(b) was placed in handcuffs and did not witness the rest of the incident (**BR 02**).

The investigation was unable to obtain a statement from § 87(2)(b)

The investigation was unable to identify the second individual with § 87(2)(b)

In PO Denton's BWC (**BR 09**) at 6:28, § 87(2)(b) is sitting up on the ground and PO Abdelfattah is holding him by his shoulders. § 87(2)(b) turns his head and attempts to bite PO Abdelfattah's leg. PO Abdelfattah says to § 87(2)(b) "Yo, stop biting!" § 87(2)(b) who is sitting up, thrashes his head and upper body around. PO Abdelfattah says, "Oh my god, put him down. Put him down. I'm fucking sick of this shit." § 87(2)(b) continues to struggle with officers, baring his teeth at PO Denton as he places his hands on § 87(2)(b)'s shoulders. At 6:44, § 87(2)(b) says, "I don't give a fuck about this shit. I'll break out right now." PO Abdelfattah and PO Denton hold § 87(2)(b) on his side while § 87(2)(b) continues thrashing his body. At 6:58, PO Abdelfattah has his right knee on § 87(2)(b)'s backside and his left hand on the middle of § 87(2)(b)

§ 87(2)(b)'s back. § 87(2)(b) is breathing heavily but does not say that he cannot or is struggling to breathe. Additional officers arrive on scene and take over holding on to § 87(2)(b). PO Abdelfattah and PO Guerrero's BWC (**BR 12**) also comprehensively capture this portion of the incident.

PO Abdelfattah (**BR 03**) stated that § 87(2)(b) was resisting from the time he exited his RMP to when § 87(2)(b) was placed in an ambulance. He explained that he used profanity because it was a particularly violent and stressful situation. He did not recall restricting § 87(2)(b)'s breathing in any way but recalled having to restrain § 87(2)(b) until additional officers arrived on scene. PO Abdelfattah explained that his knee was on § 87(2)(b)'s backside to keep § 87(2)(b)'s core down on the ground and prevent him from getting back up. PO Abdelfattah grabbed § 87(2)(b) by his shirt to try to control him but did not press down. PO Abdelfattah only came in contact with his lower back area because § 87(2)(b) tried to get up and move, but PO Abdelfattah did not put any downward pressure on his back. PO Abdelfattah had no indication that he had restricted § 87(2)(b)'s breathing.

In PO Denton's BWC (**BR 09**), at 3:51, § 87(2)(b) who is sitting on the ground in handcuffs, gets up and attempts to run away a second time. PO Abdelfattah and PO Denton restrain § 87(2)(b) against the metal gate nearby. PO Abdelfattah tells § 87(2)(b) to get back on the ground. He does so.

Patrol Guide procedure 200-02 (**BR 18**) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

In DAO-DCT Case Number: 2017-17276 (**BR 19**) the court held that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

Patrol Guide procedure 221-01 (**BR 15**) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." This procedure defines a chokehold as any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air, which is prohibited. Officers are also prohibited from using any level of force on a handcuffed or otherwise restrained individual unless necessary to prevent injury, escape, or to overcome active physical resistance or assault.

Patrol Guide procedure 221-02 (**BR 16**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. This procedure also instructs officers to apply no more than the reasonable amount of force necessary to gain control. Officers are to avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject's chest or back, thereby reducing the subject's ability to breathe. Officers should position rear-handcuffed persons to promote free breathing, as soon as safety permits, by sitting the person up or turning the person onto his or her side.

BWC confirms that when PO Abdelfattah said to § 87(2)(b) "Put him down, I'm fucking sick of this shit," § 87(2)(b) had already tried to run from officers twice, was still attempting to flee, and was still resisting officers by moving his body and trying to bite PO Abdelfattah, after

already biting PO Denton. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation (K) Force: Police Officer Alex Ayala used physical force against § 87(2)(b)

Allegation (L) Force: Police Officer Thermond Brunson used physical force against § 87(2)(b)

Allegation (M) Force: Police Officer Anthony Tolba used physical force against § 87(2)(b)

Allegation (N) Force: Police Officer Jeffrey Stpierre used physical force against § 87(2)(b)

Allegation (O) Force: Police Officer Olivia Kania used physical force against § 87(2)(b)

Allegation (P) Discourtesy: Police Officer Jeffrey Stpierre spoke discourteously to An Individual.

Allegation (Q) Force: Police Officer Edber Vazquez used physical force against An Individual.

Allegation (R) Force: Police Officer Kristin Coscia used physical force against § 87(2)(b)

Allegation (S) Force: Police Officer Nelson Hernandez used physical force against § 87(2)(b)

Allegation (T) Force: Police Officer David Kapelanski used physical force against § 87(2)(b)

These allegations derive from BWC footage.

§ 87(2)(b) stated that she left after § 87(2)(b) was placed in handcuffs and did not witness the rest of the incident (**BR 02**).

The investigation was unable to obtain a statement from § 87(2)(b)

The investigation was unable to identify the second individual with § 87(2)(b)

BWC confirmed that over the next fifteen minutes, as additional officers and EMS arrived on scene, § 87(2)(b) continued to ignore officers' verbal commands and resisted by pushing, kicking, biting, and spitting on officers.

PO Ayala's BWC (**BR 10**) comprehensively captures the remaining portion of this incident, to when § 87(2)(b) is placed in an ambulance. At 1:30, PO Ayala is the fourth officer (after PO Abdelfattah, PO Denton, and PO Guerrero) to make physical contact with § 87(2)(b). § 87(2)(b), who is handcuffed and on the ground, starts kicking at PO Ayala. PO Ayala holds § 87(2)(b) by his legs. At 3:30, PO Abdelfattah steps away from § 87(2)(b) and PO Ayala and PO Brunson holds him by his legs and shoulders. PO Brunson and PO Stpierre tell § 87(2)(b) to relax.

At 6:30, PO Kania and PO Stpierre assist in standing § 87(2)(b) up. § 87(2)(b) begins jerking his arms, which are still rear handcuffed, away from PO Kania, who is holding his arms. Officers tell him to stop moving around and to relax. At 7:20, an officer says, "Yo, stop fighting." Multiple officers tell him to sit down. § 87(2)(b) tells the officers to get off of him. Sgt. Nelson tells the officers to sit him down and to cross his legs. § 87(2)(b) replies, "I ain't crossing nothing." § 87(2)(b) does not sit down but instead appears to lock his legs and bend over against the metal gate, preventing officers from sitting him down. PO Brunson says, "Yo, stop biting."

At 7:30, with the assistance of PO Tolba, all five officers place § 87(2)(b) down and hold him on the ground. PO Stpierre falls over in the process. The ambulance arrives on scene at § 87(2)(b)

At 9:50, § 87(2)(b) begins moving around. PO Ayala tells him to “take it easy.” § 87(2)(b) replies, “Fuck off, bitch.” § 87(2)(b) shouts at the officers to get off of him and to “suck his dick.”

At § 87(2)(b), EMTs walk up to § 87(2)(b). § 87(2)(b) moves around again. At 11:19, § 87(2)(b) bares his teeth at the EMT. PO Ayala and PO Vazquez tell § 87(2)(b) to stop moving. At 11:55, he jerks his body and tells the officers to “suck his dick” again. Officers are holding § 87(2)(b) by his arms and legs, face down on the ground.

At § 87(2)(b), the stretcher is brought over to § 87(2)(b). He yells that officers are trying to blind him. At § 87(2)(b), it takes multiple officers to lift § 87(2)(b) and place him onto the stretcher, including PO StPierre, PO Vazquez, PO Coscia, PO Hernandez, and PO Kapelanski. At § 87(2)(b), § 87(2)(b) is set down on his back onto the stretcher and he kicks at officers. He spits in PO Kamalic’s face and says, “Fuck all y’all.” PO Brunson covers § 87(2)(b)’s mouth with his sweatshirt while officers place the restraints on § 87(2)(b). At 14:05, PO Kapelanski says to § 87(2)(b) “Stop biting me. Stop spitting.”

At § 87(2)(b) an EMT injects § 87(2)(b) with a sedative. He is placed in the ambulance shortly thereafter.

In PO StPierre’s BWC (**BR 11**), at 4:10, an unknown individual (not the individual who was with § 87(2)(b) originally) walks up while § 87(2)(b) is fighting with PO StPierre and the other officers. The unknown individual walks past multiple officers and tells § 87(2)(b) to calm down. PO StPierre tells the individual to “get the fuck out of here.”

§ 87(2)(g)

A Threat Resistance and Injury report were prepared regarding this incident (**BR 08**). The overview states that § 87(2)(b) was subdued and placed in handcuffs. PO Kamalic assisted officers in escorting § 87(2)(b) onto the ambulance and § 87(2)(b) spat in his face while he did so. A supporting attachment notes that § 87(2)(b) was sedated by EMS on scene and placed in restraints due to his resistance.

Patrol Guide procedure 221-01 (**BR 15**) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” This procedure defines a chokehold as any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air, which is prohibited. Officers are also prohibited from using any level of force on a handcuffed or otherwise restrained individual unless necessary to prevent injury, escape, or to overcome active physical resistance or assault.

Patrol Guide procedure 221-02 (**BR 16**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. This procedure also instructs officers to apply no more than the reasonable amount of force necessary to gain control. Officers are to avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject’s chest or back, thereby reducing the subject’s ability to breathe. Officers should position rear-handcuffed persons to promote free breathing, as soon as safety permits, by sitting the person up or turning the person

onto his or her side.

Patrol Guide procedure 200-02 (**BR 17**) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

In DAO-DCT Case Number: 2017-17276 (**BR 18**) the court held that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent and stressful confrontation.

BWC confirms that § 87(2)(b) continued to resist officers by kicking, spitting, and biting them, and ignored verbal commands to stop doing so as well as other commands to sit down, stand up, or stop moving, for the entirety of the incident. Furthermore, BWC confirms that § 87(2)(b) was physically resisting officers in this manner when the unknown individual walked up to § 87(2)(b).

§ 87(2)(b), § 87(2)(g)
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§ 87(2)(b), § 87(2)(g)

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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 20**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 21**).
- PO Abdelfattah has been a member of service for four years and has been listed as a subject in five CCRB complaints and 21 allegations, of which two have been substantiated.
 - 202103607 involved an allegation of force, which was exonerated; an allegation of a vehicle stop and vehicle search, which were exonerated; and an allegation of a strip search and an allegation of a word discourtesy, which were both substantiated. The Board recommended Charges and the NYPD has yet to impose discipline.
 - 202203871 involved an allegations of force – handcuffs too tight, two allegations of force – hit with an inanimate object, two allegations of physical force, an allegation of interference with recording, two allegations of property damage, and an allegation of discourtesy – action. This case was temporarily closed pending litigation.

○ § 87(2)(g)

- PO Denton has been a member of service for three years and has been a subject of one CCRB complaint and two allegations, which were not substantiated.
 - 202200750 involved one allegation of physical force and one allegation of a vehicle search. This case was temporarily closed pending litigation.
- PO Guerrero has been a member of service for four years and has been listed as a subject in one CCRB complaint and two allegations, neither of which were substantiated.
- PO Ayala has been a member of service for nine years and has been listed as a subject in one CCRB complaint and one allegation, which was not substantiated.
- PO Brunson has been a member of service for one year and this is the first CCRB complaint in which he is listed as a subject.
- PO Tolba has been a member of service for one year and this is the first CCRB complaint in which he is listed as a subject.
- PO Stpierre has been a member of service for four years and this is the first CCRB complaint in which he is listed as a subject.
- PO Kania has been a member of service for seven years and this is the first CCRB complaint in which he is listed as a subject.
- PO Coscia has been a member of service for eleven years and has been listed as a subject in two CCRB complaints and two allegations, neither of which were substantiated.
- PO Hernandez has been a member of service for nine years and has been listed as a subject in two CCRB complaints and five allegations, none of which were substantiated.
- PO Kapelanski has been a member of service for fifteen years and this is the first CCRB complaint in which he is listed as a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On January 25, 2023, a FOIL request for any Notice of Claim filed with the City of New York was returned with negative results (**BR 22**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 10

Investigator:	<u>Carter Garfield</u>	<u>Inv. Garfield</u>	<u>09/08/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>09/08/2023</u>
	Signature	Print Title & Name	Date

Reviewer: _____

Signature

Print Title & Name

Date